

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009649

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JOB S. LAWRENCE

vs.

DEFENDANT: ELIZABETH JIMENEZ

NATURE OF PROCEEDINGS: MOTION – ANTI-SLAPP 425.16

RULING

Defendant’s special motion to strike the First Cause of Action is granted. The motion is denied as to the Second Cause of Action. Defendant’s request for attorney’s fees is denied.

Allegations in Plaintiff’s Verified Complaint

Plaintiff Job Lawrence filed his Complaint against Defendant Elizabeth Jimenez on April 1, 2026, alleging that the parties were in a romantic relationship from approximately November 2016 through late 2022. They were engaged for a portion of their relationship and resided together at a property in San Anselmo, which was purchased in October 2018. Plaintiff paid a large percentage of the purchase price of the property with his separate funds, and both parties signed the mortgage documents for the balance as co-borrowers. At all relevant times, Defendant retained her separately owned property in Sonoma. Plaintiff contributed \$40,534.27 for the benefit of Defendant’s Sonoma property.

In October 2020, Defendant moved out of the San Anselmo property. After the relationship ended, in February 2023, Defendant requested that Plaintiff refinance the property to remove her as a co-borrower. Defendant also requested to be reimbursed for her financial contributions to the household living expenses in exchange for her releasing her interest in the title. In March 2023, Plaintiff received a letter from Defendant’s counsel in which Defendant abandoned her request for expense reimbursements and instead asserted that she was entitled to one half the interest in the San Anselmo property. (Complaint, ¶35.) The letter demanded that Plaintiff compensate Defendant \$116,355.20, for living expenses she paid, or Defendant would file a partition action to force a sale of the property and file a lis pendens which would prevent Plaintiff from refinancing the property. (*Ibid.*) Defendant made these threats knowing of Plaintiff’s severe litigation trauma from prolonged divorce proceedings with an abusive former spouse. (*Id.*, ¶¶7, 37.)

On March 9, 2023, Defendant's counsel sent a "Real Estate Buyout Agreement" to Plaintiff which required Plaintiff to pay \$100,000 in exchange for a quitclaim deed for Defendant's interest in the property. Plaintiff was given a deadline five hours away and did not have an opportunity to seek legal counsel. Defendant objected to the agreement's description of the parties as having equal 50% ownership, so this was replaced with an acknowledgement that Defendant had a "partial ownership interest". Believing he had no ability to further contest the terms, and without legal counsel, Plaintiff signed the agreement. He closed the refinancing a few days later and paid Defendant the \$100,000.

Plaintiff's First and Second Causes of Action seek rescission of the Buyout Agreement on the grounds of economic duress and undue influence, respectively. The Third Cause of Action alleges money had and received and the Fourth Cause of Action alleges promissory estoppel.

Plaintiff's Request for Judicial Notice

Plaintiff's request for judicial notice of the recorded grant deed executed on March 9, 2023 (Exhibit 1), orders entered in Plaintiff's prior family law proceeding, Case No. 6-13-FL-010041 (Exhibit 2), and Plaintiff's Verified Complaint and Defendant's Verified Answer in this case (Exhibit 3), are granted. However, the court does not take judicial notice of the truth of matters stated therein. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

Evidentiary Objections

Plaintiff's Objection No. 1 is overruled as to the first paragraph and Exhibit B. Plaintiff contends that the submitted texts are incomplete but also states that he has submitted the complete correspondence as Exhibit E to his declaration. The Court considers all correspondence. Plaintiff's Objection No. 1 is sustained as to Defendant's characterizations of the texts in subparagraphs (a) through (l). Objection Nos. 2 (personal knowledge), 3 (personal knowledge as to Ms. Kingsbury only), 4 (improper legal conclusion/opinion as to the sentence beginning "That letter did not constitute"), and 5 (improper legal conclusion/argumentative), are sustained. Objection No. 3 is overruled except as to the statement about Ms. Kingsbury's intent and Objection No. 4 is overruled as to the sentence beginning "Lawrence has never offered". Objection Nos. 6-12 are overruled.

Standard

Defendant has filed a special motion to strike the Complaint pursuant to the anti-SLAPP statute, California Code of Civil Procedure § 425.16, which provides in pertinent part:

(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the

plaintiff has established that there is a probability that the plaintiff will prevail on the claim . . .

(e) As used in this section, “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law

A cause of action will be stricken under the anti-SLAPP statute if both parts of a two-prong analysis show that the claim arises from protected activity and lacks minimal merit. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 819-820.) In the first prong, the defendant meets its initial burden by demonstrating that the challenged cause of action is one “arising from” protected activity. If the defendant makes this showing, the burden shifts to the plaintiff for the second prong, requiring the plaintiff to establish a “probability” that he will prevail on the claim. (*Id.*; Code Civ. Proc. § 425.16(b).) “To establish a probability, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 [citation omitted].)

Defendant challenges only the First and Second Causes of Action for rescission.

First Cause of Action: Rescission/Economic Duress

Plaintiff’s First Cause of Action seeks rescission based on economic duress and alleges:

66. Plaintiff’s consent to the Buyout Agreement was obtained through wrongful threats and acts constituting economic duress within the meaning of California Civil Code Section 1567. Specifically, Defendant, through her attorney, threatened to file a partition action and record a lis pendens against the Alpine Property — Plaintiff’s sole significant asset — despite Defendant’s \$0 capital contribution to the property and despite the meritlessness of her equity claim.

67. These threats were made with the specific intent to exploit Plaintiff’s documented and severe litigation trauma, knowledge of which Defendant possessed due to the parties’ intimate relationship and Defendant’s professional background as a licensed therapist and former paralegal.

68. As a result of these wrongful threats, Plaintiff had no reasonable alternative but to sign the Buyout Agreement. The threat of a *lis pendens* would have clouded title to Plaintiff's home and prevented refinancing. The threat of partition litigation, given Plaintiff's known history of devastating and expensive divorce litigation, constituted a weaponized psychological trigger that deprived Plaintiff of his free will.

First Prong/Protected Activity

Defendant argues that this cause of action arises out of protected petitioning activity because it is based on her attorney's prelitigation letter to Plaintiff. The letter from Defendant's counsel stated among other things:

The deeds to the Property, including the deeds upon refinance of the Property, each place title in both of your names, in joint tenancy with right of survivorship. This means that you each have a 50% undivided interest in the Property . . .

While Liz is legally entitled to 50% of the equity in the Property, she is willing to give up her rights to this equity, providing you reimburse her for the mortgage payments she made over the years. As she told you, this adds up to \$116,355.20.

I understand that you are now pressuring Liz to sign papers for a refinance of the mortgage loan in your name only, which would also require her to sign away her title to the Property. I have advised Liz not to sign away any of her rights in the Property until we can get this sorted out. I have also advised her that she could file an action for partition of the Property by sale, which would require the recording of a *lis pendens* on the Property, to stop any conveyances or encumbrances on the Property until the partition action is resolved.

(Declaration of Elizabeth Jimenez ("Jimenez Decl."), Exh. A.)

“A cause of action ‘arising from’ defendant’s litigation activity may appropriately be the subject of a section 425.16 motion to strike.” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056 [citations omitted].) “Courts have taken a fairly expansive view of what constitutes litigation-related activity for purposes of section 425.16.” (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 803-804.) Threats by a party’s legal counsel to file a lawsuit, contemplated in good faith and under serious consideration, are deemed to be protected activity. (See *Rohde v. Wolf* (2007) 154 Cal.App.4th 28, 36-37; *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 472 [“Prelitigation letters demanding that a party cease from doing certain acts or be subject to a lawsuit based on that conduct are in preparation or anticipation of litigation and fall within the protection of section 425.16, subdivision (e)(2)”].)

To determine whether a claim arises out of protected activity, the court starts by considering the elements of the claim and the actions that supply those elements and consequently form the basis for liability. (*Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1019.) “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062-1063.) “[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Id.* at p. 1063.)

The Court looks to the First Cause of Action to see if Defendant’s counsel’s letter supplies the elements and the basis for liability. The Court concludes that it does. “The doctrine of ‘economic duress’ can apply when one party has done a wrongful act which is sufficiently coercive to cause a reasonably prudent person, faced with no reasonable alternative, to agree to an unfavorable contract. The party subjected to the coercive act, and having no reasonable alternative, can then plead ‘economic duress’ to avoid the contract.” (*CrossTalk Productions, Inc. v. Jacobson* (1998) 65 Cal.App.4th 631, 644 [citation omitted].) Here, Plaintiff expressly alleges that the duress that caused him to sign the Buyout Agreement was counsel’s letter raising the possibility of litigation if Plaintiff did not pay Defendant what she claimed she was owed. (Complaint, ¶¶66, 68; see also Declaration of Job Lawrence (“Lawrence Decl.”), ¶11 [reciting Plaintiff’s March 8, 2023 text to Plaintiff that stated: “I am not agreeing to this payment out of choice, but only because you have the leverage of threatening legal action”].) The letter is an element of Plaintiff’s claim – the wrongful act. The claim cannot be asserted without the letter.

Plaintiff argues that Defendant’s counsel’s letter was not written in good faith because up to that point Defendant sought financial reimbursement, not equity in the property, and Defendant had also acknowledged that she lacked the equity that was demanded in the letter. (See Lawrence Decl., ¶¶5-7, 9, 10.) “A prelitigation communication is privileged only when it relates to litigation that is contemplated in good faith and under serious consideration. The privilege arises at the point in time when litigation is no longer a mere possibility, but has instead ripened into a proposed proceeding that is actually contemplated in good faith and under serious consideration as a means of obtaining access to the courts for the purpose of resolving the dispute. It does not apply to statements made simply as a tactical ploy to negotiate a bargain.” (*Medallion Film LLC v. Loeb & Loeb LLP* (2024) 100 Cal.App.5th 1272, 1290 [citations and internal quotations omitted].)

Defendant has satisfied her burden of showing that her counsel’s letter was protected activity. The letter stated that counsel had advised Plaintiff that she could file a partition action and a lis pendens on the property if Plaintiff did not pay her what she claimed was owed to her. Even if Plaintiff is correct that Defendant did not have a right to claim half of the equity in the property and instead owned a much smaller interest, Defendant could still bring a partition action. There is no minimum ownership interest required to bring a partition action and the parties can resolve their respective claimed ownership interests in the context of that action. (Code Civ. Proc. §§ 872.210, 872.620, 872.710, 872.720; *Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142-143.) The filing of a lis pendens is required upon the filing of a complaint for partition. (Code Civ. Proc. § 872.250.) When the San Anselmo property was purchased in 2018, title was vested in both Defendant and Plaintiff, as reflected in the grant deed. Defendant resided at the property for some time and made mortgage payments, and both parties remained

on the title each of the three times the property was refinanced. (Jimenez Decl., ¶¶5, 6.)¹ Therefore, Defendant had a reasonable claim to title and thus a reasonable basis for filing such an action.

Because Defendant has satisfied the first prong of the analysis with respect to the First Cause of Action, the burden shifts to Plaintiff to show a probability of prevailing on this claim.

Second Prong/Probability of Prevailing

“A plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege codified in Civil Code section 47.” (*Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 840.) “A prelitigation communication is privileged . . . if it relates to litigation that is contemplated in good faith and under serious consideration . . .” (*Ibid.* [citation and internal quotations omitted].) In *Flickinger*, the plaintiff sued a contractor and the contractor’s attorney after the contractor performed work on the plaintiff’s house. The contractor’s attorney had written a letter to the plaintiff’s attorney in response to the plaintiff’s threats of litigation and noted, among other things, that the litigation could result in a third party opening an investigation into the plaintiff’s relationships with his vendors. The plaintiff asserted causes of action for civil extortion and violation of his civil rights, basing both causes of action on allegations that the contractor’s attorney used threats, intimidation and coercion to prevent the plaintiff from filing suit. The court granted the defendant’s anti-SLAPP motion, finding that the attorney’s letter was protected petitioning activity and that the plaintiff could not meet his burden under the second prong because his causes of action were barred under the litigation privilege. The court held: “The litigation privilege applies to defendant’s December 2016 letter. It related to litigation threatened by plaintiff against defendant’s client. For the reasons already discussed, the statements in the letter bore a connection or logical relation to the litigation and advanced [the client defendant’s] interest in avoiding the litigation. The trial court should have stricken plaintiff’s civil extortion claim.” (*Id.* at p. 840.)

Similarly, here, Defendant’s counsel’s letter related to potential litigation brought by Defendant against Plaintiff and thus the First Cause of Action is barred by the litigation privilege.

Plaintiff argues that the litigation privilege does not apply because the privilege precludes only liability in tort, not contract, and his claims here are based on the Buyout Agreement. However, the relevant focus is the underlying conduct on which the requested rescission is based, not merely on the fact that a contract is involved. (See *Edwards v. Centrex Real Estate Corp.* (1997) 53 Cal.App.4th 15, 40 [“Appellants’ cause of action for rescission seeks to void the releases based upon respondents’ fraud. The gravamen of the action therefore sounds in fraud, not in contract”]; *Knoell v. Petrovich* (1999) 76 Cal.App.4th 164, 169-170 [litigation privilege barred plaintiff’s claims including interference with contractual relations]; *Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1132 [“the litigation privilege extends . . . to the torts alleged here: interference with contract and prospective economic advantage”].)

¹ The Buyout Agreement itself acknowledged that Defendant had some ownership interest in the property. (Declaration of Job Lawrence, Exh. F, ¶¶3 and 4.)

While economic duress is not itself a tort, it encompasses wrongful conduct used to coerce another to succumb to the perpetrator's pressure. (See *Rich & Whillock, Inc. v. Ashton Development, Inc.* (1984) 157 Cal.App.3d 1154, 1158-1159.) Duress "is essentially tortious in nature". (*U.S. Hertz, Inc. v. Niobrara Farms* (1974) 41 Cal.App.3d 68, 81; see also *Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 402 [defendant's bad faith refusal to make payment under policy and threatening communications to cause the plaintiff to disadvantageously settle was "essentially tortious in nature"].) The gravamen of Plaintiff's claim sounds in wrongful, coercive conduct, not in contract. Therefore, the litigation privilege can, and does, apply in these circumstances.

Even if the litigation privilege did not apply here, Plaintiff has still failed to meet his burden of showing a probability of prevailing. When courts "consider the legitimacy of conduct consisting of attempts to achieve a favorable settlement of litigation, [they] must also accommodate the values of the adversary system and the rights of persons to be free from pressure that is perceived as 'wrongful.'" Frequently, threats of suit alone are considered within a party's rights, and not characterized as wrongful duress; thus, an annotation observes that in many cases it is not a defense to an action on a promissory note to claim economic duress or coercion because the plaintiff threatened suit . . ." (*Philippine Export & Foreign Loan Guarantee Corp. v. Chuidian* (1990) 218 Cal.App.3d 1058, 1080 [citation omitted]) As noted above, Defendant's name was on the title to the property. As someone with at least some ownership interest in the property, Defendant had a right to file a partition action, and the lis pendens that must be filed with such an action, to ask the court to determine her ownership rights within that proceeding. Threatening a partition action in these circumstances was not bad faith. Defendant merely identified a path towards resolution of the parties' dispute. Further, Plaintiff presents no evidence that he asked for more time to consult with an attorney or any other individual, or that he would have been prevented from doing so.

Defendant's motion is granted as to the First Cause of Action.

Second Cause of Action: Rescission/Undue Influence

Plaintiff's Second Cause of Action alleges:

74. Defendant actively participated in procuring the Buyout Agreement to her own manifest advantage. Defendant retained an attorney who drafted the agreement, controlled its terms, imposed a same-day signing deadline, and rejected Plaintiff's attempts to negotiate modifications — all while Plaintiff had no independent legal counsel. The \$100,000 payment constituted a manifest advantage to Defendant, who had contributed \$0 to the purchase of the Alpine Property and whose monthly contributions to household expenses were less than the fair market rental value of her occupancy.

75. Defendant used her position in the confidential relationship to take unfair advantage of Plaintiff's weakness and distress, within the meaning of California Civil Code Section 1575, by

leveraging her knowledge of Plaintiff's specific psychological vulnerabilities to extract the \$100,000 payment through threatened litigation.

First Prong/Protected Activity

"Undue influence . . . is a shorthand legal phrase used to describe persuasion which tends to be coercive in nature, persuasion which overcomes the will without convincing the judgment. The hallmark of such persuasion is high pressure, a pressure which works on mental, moral, or emotional weakness to such an extent that it approaches the boundaries of coercion. In this sense, undue influence has been called overpersuasion . . . By statutory definition undue influence includes taking an unfair advantage of another's weakness of mind; or taking a grossly oppressive and unfair advantage of another's necessities or distress. While most reported cases of undue influence involve persons who bear a confidential relationship to one another, a confidential or authoritative relationship between the parties need not be present when the undue influence involves unfair advantage taken of another's weakness or distress." (*Odorizzi v. Bloomfield School Dist.* (1966) 246 Cal.App.2d 123, 130 [citations and internal quotations omitted].)

Unlike with the First Cause of Action, the conduct supporting this cause of action is not Defendant's counsel's letter. Rather, as alleged in paragraph 75, it is the parties' confidential relationship and Defendant's knowledge about Plaintiff's vulnerabilities and history. This is not protected activity. Accordingly, Defendant does not satisfy his burden of showing the First Cause of Action arises out of protected activity.

Second Prong/Probability of Prevailing

"Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning *and* lacks even minimal merit – is a SLAPP, subject to being stricken under the statute." (*Oviedo vs. Windsor Twelve Properties, LLC* (2012) 212 Cal.App.4th 97, 111 [citation omitted] [emphasis in original].) Because Defendant failed to show that the Second Cause of Action arises from protected activity, the Court need not address the second prong. The motion is denied as to the Second Cause of Action.

Attorney's Fees

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16(c)(1).)

Defendant has partially prevailed on his motion. His motion is successful as to the First Cause of Action but unsuccessful as to the Second Cause of Action. "While the term 'prevailing party must be interpreted broadly to favor an award of attorney fees to a partially successful defendant[,] ... a fee award is not required when the motion, though partially successful, was of no practical effect. A party who partially prevails on an anti-SLAPP motion generally will be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. Whether a partially successful cross-defendant achieved a sufficient benefit to qualify as a prevailing party lies within the broad

discretion of the trial court” (*Gumarang v. Braemer on Raymond, LLC* (2025) 110 Cal.App.5th 370, 388 [citations and internal quotations omitted].)

Despite Defendant’s partial success on her motion, Plaintiff still has a cause of action against Defendant seeking the same relief, rescission of the Buyout Agreement, which is based on many of the same facts as the dismissed cause of action. As a result, the Court finds that Defendant did not achieve any practical benefit by bringing the motion as the potential outcome of the case remains the same. Defendant’s request for attorney’s fees is therefore denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>